



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 26TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
JANUARY 27, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 08
Series of 2026

**"AN ORDINANCE GOVERNING THE PROCUREMENT OF GOODS, SERVICES AND INFRASTRUCTURE
PROJECTS"**

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

EXPLANATORY NOTE

This Ordinance is enacted to establish clear and uniform rules governing the procurement of goods, services and infrastructure projects of the Local Government. It aims to promote transparency, accountability, competitiveness and sound financial management in the use of public funds. By providing defined procedures, financial controls and oversight mechanisms, the Ordinance seeks to prevent misuse of resources, ensure value for money and strengthen public trust in local government procurement processes. This measure supports efficient service delivery and compliance with existing procurement and audit laws.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. Title- This Ordinance shall be known as the "Procurement and Financial Control Ordinance."

SECTION 2. Declaration of Policy- It is hereby declared the policy of the Local Government to ensure that all procurement of goods, services and infrastructure projects is conducted in a manner that is transparent, competitive, economical, efficient and accountable, and that public funds are managed with strict financial discipline and integrity, in accordance with applicable national laws and regulations.

SECTION 3. Scope and Coverage- This Ordinance shall apply to:

1. All offices and instrumentalities of the Local Government.
2. All procurement activities involving public funds, whether sourced from local revenues, grants, loans, or other lawful sources.
3. All contracts for goods, consulting services, non-consulting services and infrastructure projects, subject to national procurement and audit laws.

SECTION 4. Definition of Terms- For purposes of this Ordinance, the following terms are defined as:

1. Procurement - the acquisition of goods, services, or infrastructure projects by contract using public funds.
2. Goods- all items, supplies, materials and equipment.
3. Services- consulting and non-consulting services rendered by individuals or firms.
4. Infrastructure Projects- construction, improvement, repair, or maintenance of public facilities and works.
5. Bids and Awards Committee (BAC)- the body responsible for managing and overseeing procurement activities, constituted in accordance with national law.
6. Approved Budget for the Contract (ABC)- the maximum amount authorized for a particular procurement activity.

SECTION 5. Principles Governing Procurement- All procurement activities shall be governed by the following principles:

1. Transparency- procurement information shall be publicly accessible, subject to applicable confidentiality and data protection laws.
2. Competitiveness- equal opportunity shall be given to qualified suppliers and contractors, consistent with national law.
3. Accountability- Public officials involved in procurement shall be answerable for their actions.
4. Efficiency- procurement shall be conducted in a timely and cost-effective manner.
5. Value for Money- selection shall be based on the most advantageous offer to the Local Government.

SECTION 6. Procurement Planning-

1. All offices shall prepare an Annual Procurement Plan (APP) consistent with the approved budget.

2. No procurement shall be undertaken unless it is included in the approved APP.
3. Procurement planning shall ensure realistic costing and proper scheduling.

SECTION 7. Bids and Awards Committee-

1. A Bids and Awards Committee (BAC) is hereby constituted in accordance with applicable law.
2. The BAC shall be responsible for:
 - a. Advertising and posting of procurement opportunities.
 - b. Conduct of bidding and evaluation of bids.
 - c. Recommendation of contract awards.
 - d. Ensuring compliance with procurement rules.

SECTION 8. Procurement Methods-

1. Competitive public bidding shall be the default method of procurement.
2. Alternative procurement methods shall be allowed only when expressly authorized by applicable national laws and regulations, with proper justification and documentation.

SECTION 9. Financial Controls and Certification of Funds-

1. No procurement shall be initiated without certification of the availability of funds by the authorized finance officer.
2. No contract shall be awarded unless the Approved Budget for the Contract is sufficient.
3. Obligations and disbursements shall be recorded accurately and promptly, in accordance with national accounting standards and rules.

SECTION 10. Contract Management-

1. All contracts shall be in writing and duly approved by the proper authorities.
2. Performance securities and warranties shall be required when applicable.
3. Contract implementation shall be monitored to ensure compliance with specifications, timelines, and cost, without contravening national law.

SECTION 11. Inspection, Acceptance, and Payment-

1. Goods and completed works shall be subject to inspection and acceptance by an authorized committee.
2. Payments shall be made only upon satisfactory delivery or completion and proper documentation.
3. Advance payments shall be allowed only when authorized by national law.

SECTION 12. Prohibited Acts- The following acts are prohibited:

1. Splitting of contracts to avoid procurement requirements.
2. Participation of ineligible bidders or suppliers.
3. Acceptance of bribes, gifts, or favors related to procurement.
4. Entering into contracts without proper authority or funding.
5. Any act inconsistent with national procurement and fiscal laws.

SECTION 13. Sanctions and Penalties- Any official or employee found guilty of violating this Ordinance shall be subject to administrative, civil, and/or criminal liability under existing laws, without prejudice to penalties provided under national procurement, anti-corruption, or audit laws.

SECTION 14. Transparency and Public Disclosure-

1. Procurement notices, awards, and contracts shall be publicly disclosed, subject to applicable confidentiality and data protection laws.
2. Records of procurement activities shall be made available for audit and public inspection in accordance with national audit rules.

SECTION 15. Oversight and Audit- All procurement and financial transactions shall be subject to internal and external audit to ensure compliance with this Ordinance and other applicable regulations.

SECTION 16. Separability Clause- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

SECTION 17. Repealing Clause- All ordinances, resolutions, or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

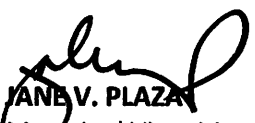
SECTION 18. Effectivity- This Ordinance shall take effect fifteen (15) days after posting in two (2) conspicuous public places in the Municipality of Carmen, Surigao del Sur as required by law.

ENACTED this 27th day of January, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LL.B., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-3-2026